

25STCV19549 25STCV19549

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Leiva, et al. v. FCA US LLC, et al.

Defendant FCA US LLC's Demurrer to Plaintiffs' Complaint

Plaintiffs

filed their complaint on June 30, 2025, asserting six claims arising from their

purchase of a 2019 Jeep Cherokee on March 25, 2019. (Compl., ¶ 7.) Defendant

FCA US LLC demurs to Plaintiffs' sixth cause of action for fraudulent

concealment. Instead of opposing the demurrer or timely filing as a matter of

right a first amended complaint due on or before the due date for plaintiff's

opposition, plaintiff filed a late first amended complaint. The Court grants Defendant's

request to strike the untimely first amended complaint, but the court deems that

first amended complaint to be Plaintiffs' request for leave to amend.

DISCUSSION

As

pled, Plaintiffs' claim is untimely. The statute of limitations for fraud is three

years. (Code Civ. Proc., § 338(d).) The only operative date identified in Plaintiffs' pleading is the date they purchased the Subject Vehicle, in March 2019. Without further facts establishing some other date of accrual or an applicable tolling doctrine, Plaintiffs' claim is time-barred on its face as of March 2022. Plaintiffs filed their complaint in 2025, after the limitations period expired.

The

Court's ruling does not depend on the economic loss doctrine or Plaintiffs' failure to plead a transactional or fiduciary relationship, neither of which arguments is persuasive. (See *Dhital v. Nissan North America, Inc.*

(2022) 84 Cal.App.5th 828, 843-845 [economic loss rule]; *OCM Principal Opportunities Fund, L.P. v. CIBC World Markets Corp.* (2007) 157 Cal.App.4th 835, 859 [duty to disclose].) The demurrer is sustained solely based on the statute of limitations.

CONCLUSION

The

court sustains Defendant's demurrer with 30 days' leave to amend.

Defendant

shall give notice.